

Court No. - 39

Case :- WRIT - C No. - 2901 of 2019

Petitioner :- Pooran Kumar Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siya Ram Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri S.R.Yadav, learned counsel for the petitioner, Learned Standing Counsel for the respondent nos. 1and 4 Sri Mahboob Ahmad, has accepted notices on behalf of the respondents no. 2 and 3.

The petitioner is seeking quashing of the recovery notice dated 28.11.2018 whereby a sum of Rs. 45,000/- has been sought to be recovered towards the electricity dues.

The averments of the writ petition shows that an F.I.R. has also been lodged against the petitioner and that it is case of theft of electricity.

In this view of the matter, we are of the opinion, that the petitioner has remedy under clause 6.8 of the Electricity Supply Code, 2005 by representing the matter before the concerned Executive Engineer.

We therefore, dispose of the writ petition with a direction that if the petitioner submits a representation before the respondent no.3-Executive Engineer Purvanchal Vidyut Vitran Khand-II Nigam Ltd. Prayagraj, within 15 days from today in respect of his grievances, as raised in the present petition, the respondent no.3 shall consider and decide the same in accordance with law, within a further period of 15 days after giving an opportunity of personal hearing to the petitioner.

It is made clear that this Court has not adjudicated the claim of the petitioner on merit.

Order Date :- 25.1.2019

S.Ali